

114	Andrawes Husary vs. Shahidi 2025-01487294	1.Motion - Other (Amended Application to Appear Pro Hac Vice as to Thomas J. Kherkher) 2. Case Management Conference Plaintiffs’ amended application for pro hac vice admission of attorney Thomas J. Kherkher is GRANTED. On or before the anniversary of the date of this order, if this attorney remains counsel for the moving party, the moving party must pay an annual renewal fee of five hundred dollars (\$500) for each year that the attorney maintains pro hac vice status in this case. (Gov. Code, § 70617, subd. (e)(2).) That said, the Court ADMONISHES Plaintiff and counsel for failing to file the amended application at least 10 court days before today’s hearing, as the Court previously ordered on 5/14/2025. (ROA #78.) Future failures to comply with the Court’s order may result in the issuance of an Order to Show Cause re Monetary Sanctions. Moving party shall provide notice.
115	Salvation Investment, LLC vs. MO Murrayfield, LLC 2019-01050162	Motion to Dismiss Defendants Southside Ventures, LLC; Log Hill Properties Consulting LLC; Greg Logsdon; and Robert Hill’s (collectively, “Seller Defendants”) Motion for Dismissal Under the Doctrines of Res Judicata and Collateral Estoppel is DENIED. As an initial matter, the Court ADMONISHES Seller Defendants’ counsel for submitting an opening memorandum of points and authorities that exceeds the 15-page limit imposed by the California Rules of Court. While counsel attributes the oversized brief to an “unflagged formatting error embedded into the Word document” (ROA #2975, Reply at p. 3, fn. 7), it is nevertheless the responsibility of counsel to check for such formatting issues before submitting briefs to the Court. That said, the Court exercises its discretion to consider the oversized brief in this instance. The Court also notes that after Seller Defendants filed the instant motion, Plaintiff Salvation Investment, LLC voluntarily filed a request for dismissal of its derivative claims on behalf of nominal Defendant MO Murrayfield, LLC (“Murrayfield”) as to Seller Defendants. (ROA #2973.) Accordingly, the parties’ dispute on this motion relates only to Plaintiff’s direct claims against Seller Defendants. While the title of Seller Defendants’ motion and the substance of Seller Defendants’ notice of motion and motion suggest that Seller Defendants are only moving to “dismiss” Plaintiff’s claims based upon the principles of res judicata and collateral estoppel, Seller Defendants’ actual arguments in their supporting memorandum of points and authorities go far beyond the application of res judicata and collateral estoppel. For example, Seller Defendants submitted the declarations of Robert Hill (ROA #2942) and Greg Logsdon (ROA #2943) as evidence that Seller Defendants never